

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

20. JUSTIN SIMARRO V. YAJAIRA SIMARRO

PFL20200099

On November 6, 2025, Respondent filed a Request for Order (RFO) seeking an order for Petitioner to pay credit card debts.

On November 17th, Respondent filed an Order to Show Cause and Affidavit for Contempt (OSC).

Respondent filed another RFO on January 16, 2026.

On February 13, 2026, Respondent filed a Proof of Service indicating service of an “FL300, ex parte” and an “FL300.” There are currently three RFOs pending before the court and the Proof of Service does not specify which one was served. Additionally, the Notice of Tentative Ruling was not served, nor was a blank Responsive Declaration to Request for Order. Without a properly completed Proof of Service the matter cannot be heard. The November 6, 2025 RFO and the January 16, 2026 RFO are both dropped from calendar due to lack of proper service.

According to the Proof of Service, the “FL410” was personally served on Petitioner.

Parties appeared for the hearing on February 26, 2026. The court arraigned Petitioner on the OSC. Petitioner requested additional time to hire counsel. The court continued the OSC for further arraignment to April 23, 2026 at 1:30 PM.

Parties are ordered to appear for the arraignment.

The court continued the November 6, 2025, RFO to allow Respondent time to file a corrected Proof of Service.

Respondent filed Proof of Service on April 1, 2026 showing Respondent was personally served with all the required documents.

Parties are ordered to appear on the RFO. The RFO will trail the OSC.

TENTATIVE RULING #20: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

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21. CLARA STEWART V. FRANCISCO MARIN

SFL20190229

This matter is pending receipt and review of the 3111 report. The parties last appeared before the court on January 22, 2026 at which time the court made custody and visitation orders pending receipt of the 3111 report. A review hearing was set for the present date.

On March 2, 2026, Respondent filed a Request for Order (RFO) seeking child support, attorney's fees, sanctions and therapy orders. He filed his Income and Expense Declaration concurrently therewith. All required documents were served on March 4, 2026.

Petitioner filed and served her Responsive Declaration to Request for Order and her Memorandum of Points and Authorities on March 19th. She filed and served an Amended Memorandum of Points and Authorities on March 20th and a Supplemental Declaration on March 24th.

The court received the Family Code section 3111 report on March 26, 2026.

Respondent submitted a Reply Declaration to the 3111 Report on April 10, 2026. It was served on Petitioner and Minor's Counsel the same day. Respondent requests the exchange location for non-school exchanges remain at Town Center, in El Dorado Hills as the parties have been exercising. Respondent also requests that short overnight trips on weekends required the parties to provide each other notice and provide the location of where the overnights will be taking place. Respondent also seeks clarification regarding the recommendations as to casinos and racetracks.

Petitioner filed a Reply Declaration on April 17, 2026. It was reserved on Respondent and Minor's Counsel the same day. Petitioner seeks further clarifying orders as well. Petitioner requests that the term notice or provide information requires that notice or provision of information to be in writing. Petitioner requests the minor have access to a smart watch or smart device for communication and safety purposes. Petitioner proposes changes to provisions 6.b. and 6.d.. Petitioner requests Kristin Kaminski or other mutually agreed licensed provider for family therapy.

Minor's Counsel has not submitted a declaration.

The court has read and considered the filings as outlined above. The court adopts the recommendations as set forth in the March 26th 3111 report with the following modifications. All notice and provision of information shall be in writing utilizing the co-parenting application Talking Parents. The parties are to continue to use the current